

**FICTIONAL TRAINING ARTIFACT — NOT FILED — NOT LEGAL
ADVICE**

UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA
Richmond Division — Civil Action No. SYN-EDVA-25-CV-0412

BENTON'S STATEMENT OF DISPUTED MATERIAL FACTS

Filed: November 10, 2025

Response convention and record scope

Benton submits this statement with her opposition to Blue Cedar's motion for summary judgment. Each numbered paragraph identifies a proposition that is disputed, admitted only in part, or requires qualification. A reference to a document means the cited record supports the stated proposition; it does not concede every characterization placed on that document by either party. The words “undisputed for this motion” identify a fact Benton does not presently contest, not a stipulation for every later purpose.

1. Benton does not dispute that Blue Cedar pursued annualized savings or that the approved model exceeded the target. She disputes that those facts explain why she, rather than another manager, was selected.
2. Benton does not dispute that retained managers had some different assignments. She disputes that those differences were evaluated consistently under the five written criteria.
3. Benton disputes any assertion that the manager score was merely descriptive and immaterial. The workbook, scorecards, calibration minutes, and variance audit show that leadership calculated, changed, compared, and approved the scores while evaluating the alternatives.
4. Benton relies on the discovery record described below and separately identifies the late Wynn submission as contested-use material rather than silently treating it as admitted evidence.

Protected activity and decisionmaker notice

5. On January 17, 2025, Benton wrote that the assignment of lead credit appeared sex-based, identified examples, and asked Blue Cedar to review the data. Voss understood the message as a discrimination concern and forwarded it to Solis. Blue Cedar's characterization of the message as an ordinary allocation complaint is disputed by the words used and the employee-relations file.
6. Benton filed an agency charge on February 3. Blue Cedar received the notice February 10. Solis routed the packet to Pike that afternoon; the system recorded an open event February 11; Pike replied; and he attended the February 12 meeting concerning preservation, assignment-score sources, staffing inputs, and response ownership.
7. Blue Cedar now admits Pike had general awareness of the internal concern and agency matter before March 24. Benton disputes any suggestion that the routing evidence proves only passive mailbox receipt. Pike's reply and meeting participation provide additional evidence of knowledge.
8. The employee-relations control required human-resources review of proposed changes to Benton's score, duties, pay, schedule, or employment during the ninety-day period. The parties dispute whether Pike's general "business continuity" approval adequately resolved the consistency issues identified under that control.

RIF timing, population, and target

9. Finance supplied a \$612,000 annualized savings target. The covered population contained twenty-three authorized positions, consisting of twenty-one filled positions and two vacancies. The approved B-7 model removed five employees and eliminated the two vacancies, leaving sixteen filled positions and projecting \$618,400.
10. Benton does not dispute the arithmetic in paragraph 9. She disputes Blue Cedar's implication that the target or seven-position reduction compelled her selection. The corporate witness admitted that finance did not direct which manager to choose and that more than one modeled combination could reach the target.
11. The workbook opened February 14, after Blue Cedar received the agency notice and after Pike's reply and February 12 meeting. Calibration occurred from March 4 through March 14. Solis completed the variance audit March 18, Pike approved B-7 March 21, and Benton was terminated March 24.
12. Blue Cedar describes the sequence as a finance-driven quarterly process. Benton disputes the inference to be drawn from that description because the same sequence places notice, discretionary score changes, unresolved variances, selection, and termination within six weeks. The timing is one part of the combined causation evidence, not Benton's only asserted fact.

Baseline metrics and calibration changes

13. Benton's imported score was 84: completion 27, continuity 22, credentials 14, availability 12, and role uniqueness 9. Her final score was 68 after continuity fell to 14, availability to 6, and uniqueness to 7. Completion and credentials remained unchanged.
14. Blue Cedar has identified no refreshed source-system measure showing a missed audit, expired credential, changed transition date, or corrected travel total that caused those reductions. The parties agree the changes were calibration judgments. They dispute whether the judgments were consistent and whether Blue Cedar honestly relied on them.
15. Benton completed forty-seven of fifty audits on time and twenty-eight approved travel days. Northline and Oriole were scheduled through June. Her 2024 review called her a strong performer, and no discipline, attendance warning, failed regulatory deliverable, or contemporaneous client complaint appears in the cited records.
16. Solis flagged inconsistent transition treatment, future willingness compared with completed travel, and an automation exception without a transfer estimate. Pike initialed the audit “approved—business continuity.” Benton disputes that the notation supplied a source for each variance or explained why every challenged adjustment treated her differently.

Retained-manager comparisons

17. Wynn's imported total was 76 and final total 78 after continuity increased from 20 to 22 for Lantern, scheduled to end May 30. Benton's transitions extended through June, yet her continuity score decreased eight points as handoff capable. No written client demand required Wynn personally to remain on Lantern.
18. Ibarra's imported total was 73 and final total 78 after availability increased from 9 to 14 based on a February 27 offer to accept more future travel. He completed sixteen travel days. Benton completed twenty-eight but lost six availability points after one next-day assignment conflicted with a scheduled client closeout.
19. Keene's imported total was 74 and final total 75 after uniqueness increased from 14 to 15 for the reporting-script library. The library was accessible to the manager group, and no formal transfer-time estimate appears in the record. Benton's uniqueness decreased because Blue Cedar planned to give remediation review to Keene and Voss.
20. The parties agree the employees were not identical. Benton disputes that portfolio differences prevent comparison. All four managers performed the common planning, staffing, exception-review, remediation, and client-contact functions and were evaluated together under the same named criteria.

Target-reaching alternatives and coverage

21. The nonmanager position base in the alternatives was \$470,400. Replacing Benton with Wynn, Ibarra, or Keene produced position savings below \$612,000, but the workbook separately modeled a \$14,600 archive-hosting consolidation. Including it produced totals of \$624,000, \$617,000, and \$613,000. Each exceeded the target.
22. Blue Cedar admits those calculations and states that Pike rejected the alternatives on coverage grounds. Benton disputes that B-7 presented a uniquely workable coverage arrangement. Wynn could receive Northline but was still handling Lantern; Ibarra could receive Oriole despite less completed travel; and Keene's automation library lacked a documented transfer barrier.
23. The March 25 redistribution gave Northline to Wynn, Oriole to Ibarra, remediation review to Keene, and the monthly quality meeting to Voss. The underlying work continued. No new manager was hired during the period shown, but retained employees incurred the transition work reflected in their testimony and assignment records.
24. Benton does not contend that an employer must choose the highest score or any specific alternative. She contends that the existence of qualifying alternatives and ongoing overlapping work permits a factfinder to assess whether the asserted coverage distinctions were the real reason for selecting her.

Performance, redistribution, and explanation history

25. The March 24 letter described budget savings and redistribution of redundant management responsibilities. It did not identify poor completion, unwillingness to travel, client confidence, discipline, or a client complaint. Benton remained eligible for rehire, and the termination register marked performance action “none.”
26. Blue Cedar's April agency response added Benton's relative completion and availability profile. Pike's July account also referred to client confidence. Voss testified that Benton's performance was satisfactory and identified no contemporaneous client complaint. The parties dispute whether these were consistent details of one reason or expanding explanations that weaken the original account.
27. Benton's work remained active after the position elimination. By May 31, transferred matters continued, with recorded client hours distributed among Wynn, Ibarra, Keene, and Voss. Benton agrees Blue Cedar eliminated her position; she disputes that continuation of the work supports the company's description of her coverage as less important.
28. The record contains no direct statement by Pike identifying protected activity as a scoring criterion. Benton relies on circumstantial proof: his knowledge, timing, discretionary approval, asymmetric calibration, alternatives, positive performance, redistributed duties, and explanation sequence. She disputes Blue Cedar's effort to assess each item without the others.

Segregated summary of genuinely disputed facts

29. The parties genuinely dispute whether Pike honestly relied on business continuity when he approved the three reductions to Benton's score and the favorable treatment of retained managers. They dispute whether the variance audit was substantively resolved, whether the alternatives posed materially different burdens, and whether the later explanation terms merely elaborated the March reason.
30. They also dispute the inferences supported by the six-week sequence, the post-notice opening of the workbook, Benton's leading imported score, the absence of negative source measures, and the continued performance of her duties. Those disputes concern motive and causation, not merely the wisdom of a business decision.
31. Wynn's November 3 declaration is attached to Benton's opposition. Blue Cedar has preserved a use objection and advised that it will seek a separate ruling. Benton identifies the declaration as procedurally contested material so that its status is not confused with the admitted discovery record. This statement does not assume how the Court will resolve that objection.
32. Even if that declaration is not considered, Benton maintains that paragraphs 5 through 30 describe an independently sufficient circumstantial record. Her summary-judgment response does not ask the Court to treat disputed facts as established; it asks that reasonable competing inferences be reserved for the finder of fact.